

25STCV23962 25STCV23962

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: MOTION TO DEPOSIT FUNDS IN INTERPLEADER AND PROPOSED ORDER

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Case Number: 25STCV23962 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

Downtown LA Law Group LLP,

Plaintiff,

vs.

Chanda Kellogg; Law Offices of
Ramin Younessi, A Professional Law Corporation and Does 1-50,

Defendants.

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CASE NO: 25STCV23962

[TENTATIVE] ORDER RE: MOTION
TO DEPOSIT FUNDS IN INTERPLEADER AND PROPOSED ORDER

Dept. 731

September 17, 2026

8:30 A.M.

Matter No. 6

Moving Party: Defendant, Law Offices of Ramin Younessi

Opposing Party: Plaintiff, Downtown LA Law Group LLP

Notice: OK

Background Facts

This action involves a dispute over
right to portions of the attorneys' fees obtained pursuant to a resolved civil
litigation involving Defendant Chanda Kellogg (no assigned case number), in
which action Ms. Kellogg was first represented by Defendant Law Offices of
Ramin Younessi before changing representation to Plaintiff Downtown LA Law
Group LLP.

Now before the Court is Defendant
Law Offices of Ramin Younessi's opposed demurrer to the two claims for

Interpleader and Declaratory Judgment alleged against it in Plaintiff Downtown LA Law Group LLP's First Amended Complaint in Interpleader ("FAC").

Demurrer

Meet and Confer

The Court determines that while the meet and confer efforts that preceded Defendants' demurrer were insufficient (Demurrer, Ortiz Decl., ¶ 4 [meet and confer limited to March 2, 2026, well before filing of FAC on June 15, 2026]; cf. Code Civ. Proc., § 430.41, subd. (a)), such a finding is not a basis to overrule the demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4) ["A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer"].)

b. Legal
Standard

i. Uncertainty

A demurrer to a pleading lies where the pleading is uncertain, ambiguous, or unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616, disapproved on other grounds in *Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 46 [holding claims for unfair business practices need not be pled specifically, impliedly disapproving Khoury].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in *Jefferson v. J.E. French Co.* (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is

not properly subject to a special demurrer for uncertainty. (See *ibid.*; see also *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643 ["A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

ii. Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Discussion

i. FAC, First Cause of Action, Interpleader

As to the interpleader claim, the Court finds in favor of Defendant.

For interpleader purposes,

“stakeholder” is any person, firm, corporation, association, or other entity who holds money or property (i.e., the “stake”) and who is or may be subject to inconsistent claims to that property. (See Code Civ. Proc., § 386, subds. (a), (b).) The stakeholder may be (1) a plaintiff who initiates the interpleader action by filing a complaint or (2) a defendant who institutes the interpleader proceeding in an ongoing suit by filing a cross-complaint in interpleader, a motion for substitution and discharge, or a motion for discharge and dismissal. (See *ibid.*)

A “disinterested stakeholder” puts the stake into the possession of the court, is dismissed from the proceeding, and leaves the competing claimants to litigate among themselves for ownership of the stake. (See Code Civ. Proc., §§ 386, 386.5; *Virtanen v. O’Connell* (2006) 140 Cal.App.4th 688, 698; see, e.g., *Hustead v. Superior Court* (1969) 2 Cal.App.3d 780, 784 [garnishee subject to conflicting claims for rent due].)

An “interested stakeholder” claims an interest in the stake, puts the stake into the possession of the court, and litigates with the claimants for ownership of the stake. (See Code Civ. Proc., §§ 386.) When an interested stakeholder is involved, the proceeding is usually referred to as “partial interpleader.” (See *City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1123.)

A “claimant” is a person or entity who asserts an interest in the stake. (See *City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1123.) The various claimants must assert a claim to the same stake and be adverse to one another. (Code Civ. Proc., § 386, subd. (b); *City of Morgan Hill*, *supra*, 71 Cal.App.4th at p. 1123.)

The first claim in the FAC alleges an interpleader claim against Defendant.

In its demurrer, Defendant argues that the first count is not sufficiently alleged because Plaintiff is not a disinterested stakeholder but instead claims an interest in the disputed funds and as of the filing of this demurrer, Plaintiff has not deposited the disputed funds with the Court. (Motion, p. 4.) Defendant also highlights contradictions in the FAC, which render it uncertain, such as Plaintiff claiming to be a disinterested stakeholder to deposit funds with the Court and Defendants to litigate over the stake, while simultaneously seeking relief in favor of

Plaintiff as to the same stake. (See, e.g., Motion, 5:1-5.)

The Court finds the latter point
availing for demurrer purposes.

Specifically, Plaintiff uses
language reading like language relating to a disinterested stakeholder while
simultaneously seeking relief for an interested stakeholder, imbuing the
pleading with uncertainty as to the nature of Plaintiff's involvement in the
case. (Compare, e.g., FAC, ¶¶ 24-27 [seeking to litigate this action, connoting
interested stakeholder], Prayer for Relief, ¶¶ 2 [praying for Defendants to
litigate amongst themselves as to stake], 5 [also praying for determination of
its portion of stake].)

The interpleader claim thus fails
on demurrer.

ii. FAC,
Second Cause of Action, Declaratory Relief

However, the demurrer fails as to
the FAC's declaratory relief claim.

A complaint for declaratory relief
must demonstrate: (1) a proper subject of declaratory relief and (2) an actual
controversy involving justiciable questions relating to the rights or
obligations of a party. (Brownfield v. Daniel Freeman Marina Hosp.
(1989) 208 Cal.App.3d 405, 410.) The fundamental basis of declaratory relief is
a present and actual controversy between the parties over a proper subject. (City
of Cotati v. Cashman (2002) 29 Cal.4th 69, 80; see Code Civ. Proc., §1060.)

Here, the FAC alleges a dispute
over right to portions of the attorneys' fees obtained in the underlying action
related to Defendant Kellogg (FAC, ¶¶ 11-23), facts which are incorporated into
the second count (FAC, ¶ 28), and are there repeated within a declaratory
relief framing (FAC, ¶¶ 29-32), with a prayer for a declaration of their
respective rights and money judgment (FAC, Prayer for Relief, ¶¶ 6-7).

The Court does not credit the
demurrer arguments against the claim.

The duplicativeness argument fails
because the Court sustained Defendant's demurrer to the interpleader claim,
eliminating any duplicativeness.

The 'no controversy' argument fails
because there is a clearly alleged controversy here regarding proceeds from the
underlying action relating to Chanda Kellogg.

The demurrer thus fails as to this
claim.

d. Conclusion

Defendant Law Offices of Ramin
Younessi's demurrer is accordingly:

(1) SUSTAINED, with leave to amend,
as to the Interpleader count (Code Civ. Proc., § 430.41, subd. (e)(1));

(2) OVERRULED as to the Declaratory
Relief count.

Defendant Law Offices of Ramin
Younessi is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court